

Distributor Addendum to the Master Subscription Agreement

This Distributor Addendum (“Addendum”) is entered into as of [●] (“Effective Date”) by and between **WanAware, Inc.**, a Delaware corporation (“WanAware”), and **[Distributor Name]**, a **[jurisdiction]** entity (“Distributor”).

This Addendum supplements the WanAware Master Subscription Agreement effective **[insert date]** (the “Agreement”). Capitalized terms not defined in this Addendum have the meanings given to them in the Agreement.

1. Appointment

1.1 Appointment. WanAware hereby appoints Distributor as a non-exclusive, independent distributor for the purpose of promoting and referring potential customers to WanAware via its network of Agents and/ or Sub-Agents (each a “Referred Customer”).

1.2 No Resale Rights. Distributor is not authorised to resell, distribute, sublicense, or otherwise make available the Services to any third party. All contracts for the purchase and use of the Services shall be entered into directly between WanAware and the Referred Customer.

1.3 Territory. Unless otherwise agreed in writing, Distributor’s appointment is global and non-exclusive.

2. Customer Ownership and Relationship

2.1 Customer Ownership. The Distributor shall own the commercial relationship with the Referred Customer and the relevant Agent/ Sub-Agent, for business development and account management purposes, but WanAware shall own and manage the contractual and service delivery relationship with such Referred Customer.

2.2 Customer Engagement. Distributor may facilitate introductions, assist in demonstrations, and provide customer relationship management, provided that all representations and statements about the Services must be accurate and consistent with WanAware’s approved marketing materials.

2.3 No Authority to Bind. Distributor shall not have authority to make any commitments, representations, or warranties on behalf of WanAware, or to bind WanAware in any manner.

2.4 Billing under WanAware MSA

WanAware shall contract directly with each Referred Customer for the provision of the Services, and all such Services shall be provided pursuant to WanAware's then-current Master Subscription Agreement or other standard customer agreement in effect at the time. WanAware will invoice the Referred Customer directly in accordance with such agreement and its standard billing practices. Distributor shall have no responsibility for billing, collecting, or remitting payments for the Services.

3. Commission and Payment

3.1 Referral Commission. For each Referred Customer that purchases Services directly from WanAware, Distributor shall be entitled to a commission calculated as follows:

- **Standard Referral Fee:** []% of the Net Subscription Fees received by WanAware from the Referred Customer during the first [12] months of the initial subscription term.
- **Optional Renewal Commission (if applicable):** []% of Net Subscription Fees on renewal terms, where WanAware confirms in writing that such renewal commissions apply.

3.2 Eligibility. A referral is deemed valid only if (a) Distributor has submitted the prospective Referred Customer via WanAware's referral registration process prior to WanAware's own engagement with that entity, and (b) the Referred Customer enters into a binding subscription agreement within [6] months of registration.

3.3 Payment Terms. Commissions will be paid within [30] days after the end of the calendar quarter in which WanAware receives full payment from the Referred Customer.

3.4 Taxes. Distributor shall be responsible for any taxes, levies, or charges imposed on commissions received under this Addendum, except for taxes on WanAware's income.

4. Compliance and Conduct

4.1 Distributor shall comply with all Applicable Laws, including the U.S. Foreign Corrupt Practices Act of 1977, the UK Bribery Act 2010, and all export control laws.

4.2 Distributor shall not engage in any deceptive, misleading, or unethical practices and shall act in a manner that reflects favorably on WanAware and the Services.

5. Term and Termination

5.1 This Addendum shall commence on the Effective Date and continue until terminated by either Party upon thirty (30) days' written notice.

5.2 Either Party may terminate this Addendum immediately upon written notice for material breach or for cause, including violation of Section 4.

5.3 Upon termination, Distributor shall cease representing itself as a WanAware distributor but shall remain entitled to commissions earned for Referred Customers contracted prior to termination.

6. General

6.1 Except as expressly modified by this Addendum, the Agreement remains in full force and effect.

6.2 Nothing in this Addendum creates an employment, joint venture, fiduciary, or agency relationship between the Parties. Distributor is an independent contractor.

6.3 This Addendum may be executed in counterparts, including electronically, each of which constitutes an original.

	WANAware, Inc
Signature:	Signature:
Printed Name:	Printed Name:
Title:	Title:
Date:	Date:

Exhibit A – Commission Schedule (Sample)

Annual Customer Spend (USD)	Commission % of Net Subscription Fees	Notes
\$0 – \$99,999	10%	Applies to first-year subscriptions
\$100,000 – \$249,999	12%	Optional uplift by mutual agreement
\$250,000+	15%	For strategic or multi-year deals

*****Need to align commission examples w/ those from partner sales guide